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CASE NAME: Flores v. Aram Solimani Inc., et al.

CASE NO.: 25SMCV02982

MOTION: Demurrer to the Cross-Complaint

HEARING DATE: 7/8/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Cross-Defendant

Aram Solimani Inc. demurs to Cross-Complainant IDS Real Estate Group's Cross-Complaint, specifically the Fourth Cause of Action for Declaratory Relief and the Fifth Cause of Action for Breach of Contractual Indemnity.

Fourth

Cause of Action

Cross-Defendant

argues that the declaratory relief action is merely duplicative of the other causes of action, and seeks an advisory opinion. A declaratory relief complaint must specifically allege that an actual, present controversy exists, and must state the facts of the respective claims concerning the disputed subject matter. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79.) A complaint will be found sufficient if it sets forth facts showing the existence of an actual controversy relating to the parties' legal rights and duties, and requests the court to adjudge these rights and duties. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606.) “Strictly speaking, a demurrer is a procedurally inappropriate method for disposing of a complaint for declaratory relief.” (*Lockheed Martin Corp. v. Continental Ins. Co.* (2005) 134 Cal.App.4th 187, 221.) Nevertheless, the court may sustain a demurrer to a declaratory relief claim if the complaint fails to allege an

actual or present controversy, or that the controversy is not “justiciable” or if it determines that a judicial declaration is not “necessary or proper at the time under all the circumstances.” (CCP § 1061; DeLaura v. Beckett (2006) 137 Cal.App.4th 542, 545.) If no facts are alleged with would render necessary or proper a declaration with respect to the future conduct of the parties, resolution by demurrer is appropriate. (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 376 [there is no basis for declaratory relief where only past wrongs are involved]; Meyer v. Sprint Spectrum L.P. (2009) 45 Cal.4th 634, 648 [demurrer properly sustained where no allegations that declaratory relief would “have any practical consequences.”].)

The CC alleges an actual, justiciable controversy between Cross-Defendant and Cross-Complainant. The CC states that the parties dispute their respective rights, obligations, and duties regarding the damages claimed by the underlying Complaint. (CC ¶ 20.) On one hand, Cross-Complainant contends that it is without fault, responsibility, or blame for any of the damages which Plaintiff in the underlying complaint may have suffered, and that it is entitled to indemnity from Cross-Defendant if any alleged acts were committed by Cross-Defendants. (CC ¶ 21.) Cross-Defendant contends the contrary. (CC ¶ 22.) Therefore, Cross-Complainant requests a declaration from the Court as to the respective rights, duties, obligations, and liabilities of Cross-Complainant and Cross-Defendants, as well as a declaration as to the percentage of fault attributable to Cross-Complainant and Cross-Defendant. (CC ¶ 23.) This controversy engages in the future rights and liabilities of the parties, and is therefore an appropriate subject for declaratory relief. The request for declaratory relief is also not duplicative or “wholly derivative” of other failed claims, since the other claims are not challenged by this demurrer. (Siskiyou Hospital, Inc. v. County of Siskiyou (2025) 109 Cal.App.5th 14, 53.)

Accordingly,
the demurrer is OVERRULED as to the fourth cause of action.

Fifth
Cause of Action

Cross-Defendant
argues that the contractual indemnity claim fails because the CC states no contract between the parties. Strictly speaking, the fifth cause of action for contractual

indemnity is not expressly stated against Cross-Defendant, but instead is alleged only against Laurel Culver, LLC. However, the allegations of the fifth cause of action also state that each Cross-Defendant failed to abide by the contractual indemnity provisions. (CC ¶¶ 25-27.) To the extent that the CC states the fifth cause against Aram Solimani Inc., the demurrer would be sustained without leave to amend.

Cross-Defendant

to file an answer with 20 days.